COVER STORY

UCC



On June 14, the 22nd Law Commission of India, headed by Ritu Raj Awasthi, a former chief justice of the Karnataka High Court, issued a notification eliciting the opinions of various stakeholders, including public and religious organisations, on a uniform civil code (UCC) for the country. The UCC is a proposal to formulate and implement a single set of civil laws to govern marriage, divorce, inheritance and adoption for every Indian, irrespective of caste, religion or sexual orientation, replacing the existing religion-based personal laws. The notification came as a surprise as only five years ago, the 21st Law Commission had concluded that a UCC was "neither necessary nor desirable at this stage" for the country.

A fortnight later, on June 27, the political storm gathered force when Prime Minister Narendra Modi, while addressing party workers in Bhopal, made a strong pitch for the UCC. "Imagine there's one law for one member of the family, and another for another in the same house," he said. "Can such a house run?" He was echoing what the government had said in its affidavit in the Supreme Court in October 2022: "Citizens belonging to different religions and denominations following different property and matrimonial laws is an affront to the nation's unity."

The electoral motivation of the PM's current political push is not lost on anyone. The general election is less than a year away, and four states that are electorally significant for the Bharatiya Janata Party (BJP)—Rajasthan, Madhya Pradesh, Chhattisgarh and Telangana—go to the polls later this year. The two successive defeats in Himachal Pradesh and Karnataka have shaken the party despite its seeming nonchalance. Hence the revival of the issue. Its success, however, say poll analysts, will depend on how the BJP packages it. "They are likely to approach the voters with a nationalistic fervour—one country, one law," says Professor Sanjay Kumar of the Centre for the Study of Developing Societies (CSDS), New Delhi. In 2017, a CSDS-Lokniti survey found only 38 per cent of the respondents (40 per cent among Hindus) backing the UCC, casting doubts on its usefulness as a poll plank. However, as Kumar says, "That was 2017. Post 2019, with the NRC, the abrogation of Article 370 and the construction of the Ram temple, the mood of the nation has dramatically changed. So, there'll be some electoral gains from the UCC for the BJP."



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– NARENDRA MODI
Prime Minister of India

The demand for a UCC has also been on the BJP's electoral manifesto since 1989, the last of the triad of promises it had made to its core support base. The other two—construction of the Ram temple in Ayodhya and abrogation of Article 370—have been delivered. The UCC, therefore, is likely to dominate the BJP's poll narrative in the months to come. Union home minister Amit Shah had announced the

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